

		nor has Petitioner provided any evidence to show where service may have been made, if at all. Moreover, it is unclear whether any of Respondents entered into an arbitration agreement with Petitioner. The agreement that is attached to the petition is a letter agreement by Petitioner addressed to Richard R. Thomas, Esq. of Smith LC in Mesa, Arizona. There is a signature line for "Approved, Responsible Party," but there is no indication who the "Responsible Party" is and the signature is not legible. Moreover, assuming the signature is that of Bart Shea, there is no evidence or other indication how that signature binds any of the other Respondents. The letter also does not include all the identified enclosures. The petition therefore is DENIED WITHOUT PREJUDICE based on the lack of service and proper notice, as well as the failure to establish the existence of an arbitration agreement between Petitioner and Respondent. The foregoing are not necessarily all the petition's shortcomings, but they are sufficient to support its denial. Any future petition will require much greater detail and evidentiary support as well as proper notice and service. Petitioner's counsel is ordered to give notice of this ruling.
2.	McPhatter vs. Fastrak Credit Corp. 2026-01563881	Before the court is the petition to compel arbitration and for monetary sanctions filed by petitioner Vardell James McPhatter (Petitioner). As more fully set forth below, the petition is GRANTED and Petitioner is awarded sanctions against respondent Fastrak Credit Corp. (Respondent) in the reduced amount of \$1,815. The drafting party of an arbitration agreement who fails to timely pay arbitration fees is in material breach of the arbitration agreement and waives its right to compel arbitration, provided the consumer properly files the demand and the arbitration provider properly provides invoices to all parties to the arbitration. (Code Civ. Proc. § 1281.97, subd. (a).) In such event, the consumer may either withdraw the claim from arbitration and proceed in a court of appropriate jurisdiction or compel arbitration in which the drafting party must pay reasonable attorney fees and costs related to the arbitration. (Code Civ. Proc. § 1281.97, subd. (b).) In addition, the consumer is entitled to reasonable attorney fees and costs incurred as a result of the material breach. (Code Civ. Proc., § 1281.99, subd. (a).) Here, Petitioner produced the parties' Conditional Sale Contract and Security Agreement which contains an

		arbitration provision that covers this dispute. (Compendium of Evidence (COE), Exh. 1 at pp. 7-8.) Petitioner is a consumer and Respondent is the drafting party. Petitioner initiated arbitration with JAMS pursuant to the arbitration agreement by filing the demand for arbitration and paying his portion of the fees. (COE, Ex. 1 at p. 7, Exhs. 3, 4; McPhatter Decl. ¶ 2.) JAMS invoiced Respondent to pay for its portion of the arbitration fees, but Respondent failed to do so, causing JAMS to close the file. (COE, Exhs. 4-7.) Petitioner has shown Respondent is in material breach of the arbitration agreement and is in default of the arbitration, such that Petitioner is entitled to compel arbitration pursuant to Code of Civil Procedure section 1281.97, subdivision (b). Petitioner also is entitled to sanctions for reasonable attorney fees and costs in bringing this motion. (Code Civ. Proc., § 1281.99, subd. (a).) The court finds the amount of fees and costs already incurred by Petitioner is reasonable, but the amount of anticipated fees is excessive in light of the fact no opposition was filed. The court therefore reduces the amount of anticipated fees by \$630 and awards the total amount of \$1,815 in favor of Petitioner and against Respondent payable within 30 days of service of notice of this ruling. Petitioner's counsel is ordered to give notice of this ruling.
3.	<i>Gamo vs. J Star Auto Group, Inc.</i> <i>2017-00942930</i>	Before the court is the motion by defendants J Star Auto Group, Inc. (JStar) and Jared Merrell (collectively, Defendants) for an award of attorney fees following the remittitur issued by the Court of Appeal on October 17, 2025. For the reasons set forth herein, the motion is DENIED. On December 15, 2022, the court entered judgment in favor of Defendants and against plaintiff Tirso Gamo (Plaintiff) on all causes of action. During this litigation, Defendants were jointly represented by Vivoli Saccuzzo, LLP. Plaintiff filed the case on September 11, 2017. On July 20, 2018, JStar served requests for admissions, set one, on Plaintiff, which included request nos. 1-54. Plaintiff served responses on August 27, 2018. On January 18, 2019, JStar served requests for admissions, set two, on Plaintiff, which included request nos. 55-71. Plaintiff served responses on to those requests on October 10, 2019. Plaintiff denied some of these various requests for admissions (and also withdrew some admissions that were initially made).